Mandal Commission and Aftermath In 1979, the Morarji Desai Government appointed the Second[6] Backward Classes Commission under the chairmanship of B.P. Mandal, a Member of Parliament, in terms of Article 340 of the Constitution to investigate the conditions of the socially and educationally backward classes and suggest measures for their advancement. The commission submitted its report in 1980 and identified as many as 3743 castes as socially and educationally backward classes. Page 83 They constitute nearly 52% component of the population, excluding the scheduled castes (SCs) and the scheduled tribes (STs). The commission recommended for reservation of 27% government jobs for the Other Backward Classes (OBCs) so that the total reservation for all ((SCs, STs and OBCs) amounts to 50%.[7] It was after ten years in 1990 that the V.P. Singh Government declared reservation of 27% government jobs for the OBCs. Again in 1991, the Narasimha Rao Government introduced two changes: **(a)** preference to the poorer sections among the OBCs in the 27% quota, i.e., adoption of the economic criteria in granting reservation, and **(b)** reservation of another 10% of jobs for other economically backward sections who are not covered by any existing schemes of reservation.

In the Indra Sawhney case[8] (1992), also called as the Mandal case, the scope and extent of Article 16(4), which provides for reservation of jobs in favour of backward classes, has been examined thoroughly by the Supreme Court. Though the Court has rejected the additional reservation of 10% for other economically backward sections, it upheld the constitutional validity of 27% reservation for the OBCs with certain conditions, viz,

1. The advanced sections among the OBCs (the creamy layer) should be excluded from the list of beneficiaries of reservation.

2. No reservation in promotions; reservation should be confined to initial appointments only. Any *existing reservation* in promotions can continue for five years only (i.e., upto 1997).

3. The total reserved quota should not exceed 50% except in some extraordinary situations. This rule should be applied every year.

4. The 'carry forward rule' in case of unfilled (backlog) vacancies is valid. But it should not violate 50% rule.

5. A permanent statutory body should be established to examine complaints of over-inclusion and under-inclusion in the list of OBCs.

6. No relaxations in qualifying marks and standards of evaluation in matters of reservation in promotions due to the requirement of maintenance of efficiency in administration under Article 335.

With regard to the above rulings of the Supreme Court, the government has taken the following actions:

1. Ram Nandan Committee was appointed to identify the creamy layer among the OBCs. It submitted its report in 1993, which was accepted.

2. National Commission for Backward Classes was established in 1993 by an act of Parliament. Its mandate was to examine the complaints of under-inclusion, over-inclusion or non-inclusion of any class of citizens in the list of backward classes for the purpose of job reservation. Later, the 102nd Amendment Act of 2018 conferred a constitutional status on the commission and also enlarged its functions. For this purpose, the amendment inserted a new Article 338-B in the constitution.